

STATE OF NEW YORK

6753--A

2025-2026 Regular Sessions

IN SENATE

March 21, 2025

Introduced by Sens. BRISPORT, SALAZAR -- read twice and ordered printed, and when printed to be committed to the Committee on Children and Families -- recommitted to the Committee on Children and Families in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to limitations on the number of cases handled by foster care workers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 20-a of the social services law, as added by chapter 107 of the laws of 1971, is amended to read as follows:

2 § 20-a. Local personnel; limitations on department's power. Notwithstanding any inconsistent provision of this chapter, the board, the commissioner or the department, acting singly or in unison, shall not have the power, directly or indirectly to prescribe the number of persons to be employed in any social services district providing the district complies with the minimum federal standards relating thereto; provided, however, that the provisions of this section shall not apply to the regulations of the office of children and family services establishing caseload standards for foster care workers promulgated pursuant to paragraph (a) of subdivision nine of section four hundred twenty-one of this chapter.

14 § 2. Section 421 of the social services law is amended by adding a new subdivision 9 to read as follows:

16 9. promulgate regulations in consultation with local social services districts, relating to caseload standards for foster care workers. Such standards shall include, but not be limited to:

19 (a) limitations on the number of foster care cases that can be assigned to foster care workers, provided however, to the extent possible and within amounts appropriated therefor, no more than sixteen

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 foster care cases may be assigned to a foster care worker at any one
2 time; and

3 (b) guidance as it relates to how such foster care cases are assigned,
4 taking into consideration the foster care worker's current caseload, as
5 well as the complexity of the particular cases. Nothing in this subdivi-
6 sion shall be construed to prohibit the office from prescribing local
7 social services districts from establishing caseload standards that are
8 less than what is required in this subdivision.

9 § 3. This act shall take effect on the sixtieth day after it shall
10 have become a law.